



# ADJOURNMENTS IN CONTEMPLATION OF DISMISSAL: CHECKLIST FOR ATTORNEYS

## I. OVERVIEW

For immigration purposes, an ACD is ***usually*** the best disposition (short of a dismissal based on factual innocence or legal insufficiency).

The default rule is that you can assume the RIAC will advise you to accept an ACD if offered. Nevertheless, an ACD will have *some* immigration consequences and you must therefore (1) screen your client for certain situations, and (2) provide them advice on immigration consequences as follows:

## II. PLEASE LET RIAC KNOW ASAP (EVEN AFTER ACCEPTING THE ACD), IF YOUR CLIENT:

- Is already in **immigration court proceedings** (aka deportation proceedings), and/or you have reason to believe **ICE will arrest your client** (e.g. an ICE detainer has been issued);
- Is a **non-immigrant** (present on a temporary visa – e.g. a foreign student or work visa) or **is undocumented**;
- Has any type of **immigration application pending** - or will need to **file an immigration application / travel overseas** before the end of the adjournment period;
- **Will be subject to an order of protection relating to domestic violence**; or
- The charges include any **controlled substance offenses**, or your client is alleged to be a **drug abuser or addict**.

## III. STEPS TO TAKE AFTER YOUR CLIENT RECEIVES AN ACD

1. Provide your client with the attached information sheet, providing general advice about ACD's for immigration purposes;
2. If an ACD is already granted (e.g. at arraignment) you must still contact the RIAC; we will provide further detailed advice if needed; and
3. Obtain a certified copy of the disposition and provide it to your client. Also advise your client to obtain a second certified copy (showing dismissal) after the ACD is complete.
4. When explaining what an ACD is to your client, be sure to emphasize that restoration could lead to a conviction which could involve immigration consequences.



## ADJOURNMENTS IN CONTEMPLATION OF DISMISSAL: ADVICE FOR CLIENTS

By providing this document to you, your attorney has adopted and endorsed it as their legal advice. Please note: the Regional Immigration Assistance Center ("RIAC") has no direct attorney-client relationship with you.

### I. PLEASE TELL YOUR ATTORNEY IF ANY OF THE FOLLOWING APPLY TO YOU

**Please tell your attorney if any of the following apply to you. (The RIAC can provide your attorney more detailed advice on these topics).**

- You are undocumented (e.g. entered the country illegally);
- You have applied for / will be filing an immigration application (e.g. asylum, a green card or citizenship);
- Are in immigration court removal (deportation) proceedings;
- You have a non-immigrant visa (e.g. foreign students, work visa);
- You need to travel internationally before the end of the ACD period (usually 6 months)

### II. IMMIGRATION CONSEQUENCES OF A NEW YORK ACD

An ACD is generally a good option for immigration purposes, because:

- During the ACD period, there is no conviction for immigration purposes (an ACD does not require a guilty plea or any admission to the charges);
- Once the ACD period is successfully completed, the criminal case is dismissed – meaning there is also no conviction for immigration purposes; and
- *Most* negative immigration consequences (such as deportability and inadmissibility) are only triggered if a non-citizen was convicted of a criminal offense.

#### **HOWEVER, AN ACD CAN STILL HAVE SOME IMMIGRATION CONSEQUENCES, INCLUDING THE FOLLOWING:**

- **Not all immigration consequences require a criminal conviction.** Some immigration consequences are triggered if either (1) a non-citizen admits to certain misconduct, or (2) immigration authorities can prove they committed that misconduct. An ACD avoids any conviction, but a non-citizen may, in certain circumstances, be required to submit arrest

- reports and be asked to explain what happened. The non-citizen's own answers could trigger immigration consequences (*even if the criminal case was dismissed*).
- **Drug Use:** If a non-citizen is charged with any controlled substance offense, or alleged to be a "drug addict or abuser" this can be used by immigration authorities as evidence of deportability or inadmissibility – *even if the criminal case is ultimately dismissed*.
- **ACD's – And The Underlying Arrest Report - Must Still Be Disclosed With Many Immigration Applications (Even If The Criminal Case Has Been Sealed).** Most applications - such as for a green card or citizenship - are discretionary, meaning they can be denied simply because an officer does not feel they deserve that benefit, based on any allegations of misconduct they are aware of. While an ACD means that a non-citizen has not been *convicted* of any offense, they will still be required to disclose the arrest report - and account for what happened.
- **ACD's can be restored, and can result in a conviction if the case is not dismissed.** If you violate any of the terms of the ACD, your criminal case can be restored (reopened) and you could face immigration consequences based on the original charges.

### III. STEPS YOU SHOULD TAKE AFTER RECEIVING AN ACD

1. **Get a certified copy of the disposition, after dismissal.** Once the ACD adjournment period has expired (usually 6 months), get a certified copy of the disposition from the court where your case was heard, proving that the case has been dismissed. When travelling internationally, we recommend taking a copy of the disposition with you (but you do not need to show it unless specifically asked about the arrest).
2. **This criminal case may still need to be disclosed in association with future immigration applications, even once it has been dismissed and sealed.** We recommend keeping a copy of all records – especially the arrest report and disposition – for this purpose.
3. **IF YOUR ACD INCLUDES A DOMESTIC ORDER OF PROTECTION:**
  - a. **Violating a domestic Order of Protection is a ground of deportation.** Importantly: **a conviction is not required** (even a non-violent action like sending a friendly text message which violates the order is enough to trigger deportation).
  - b. **All Orders of Protection are registered in a federal database and if you travel outside the U.S., you may be asked about the order.** You should consult an immigration attorney prior to traveling anywhere outside the U.S. - even a day trip to Canada.

**PLEASE NOTE - IF YOU HAVE ANY QUESTIONS ABOUT YOUR CASE:  
DO NOT CALL THE RIAC DIRECTLY - YOU MUST ASK YOUR LAWYER.**